

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551-3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. ***The clerk will NOT contact you.*** Remote appearances by video or telephone can be made utilizing the **Zoom** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - ***Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.***
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZlcVZaQlRYWXpFQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQk9kOWckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHAEL EDWARD GRAVES,

Petitioner

VS.

RANJIE LONG,

Respondent

) Case Number: FPT-25-378624

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: CHILD SUPPORT, ATTORNEY FEES AND COSTS, RETROACTIVE
CHILD SUPPORT TO 6/10/2025

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Michael Edward Graves (Father) and Respondent Ranjie Long (Mother). They were never married; they share one minor child: Achernar (DOB: 2/19/25).
- 2) On 5/19/26, Mother filed a Request for Order seeking guideline monthly child support retroactive to 6/10/25, an order to share equally child support add-on expenses, and \$100,000 in attorney's fees and costs pursuant to Family Code section 7605. Mother asserts that she requested child support in her Request for Domestic Violence Restraining Order (DVRO) filed 6/10/25, and the Court reserved jurisdiction over child support retroactive to 6/10/25 in the Amended Findings and Order After Hearing (FOAH) filed 9/8/25. The matter was set for hearing on 7/7/26.
- 3) On 5/19/26, Mother filed an Income and Expense Declaration.
- 4) On 5/19/26, counsel for Mother filed a declaration substantiating her request for attorney's fees and costs.
- 5) On 6/25/26, Father filed an Income and Expense Declaration.

- 6) On 7/6/26, the parties filed a Stipulation and Order agreeing to continue the 7/7/26 hearing to 9/1/26.
- 7) On 8/17/26, Father filed a Responsive Declaration consenting to guideline child support retroactive to 6/10/25 and an equal split of child support add-on expenses. Father opposes Mother's request for \$100,000 in attorney's fees and costs pursuant to Family Code section 7605. Father attached proposed XSpouse calculations.
- 8) On 8/25/26, Mother filed an updated Income and Expense Declaration.
- 9) On 8/25/26, Mother filed a Statement of Support Calculations.
- 10) On 8/25/26 Mother filed Notice of Augmentation of Respondent's Request for Need-Based Attorney Fees and Costs increasing her request to \$150,000.
- 11) On 8/26/26, Mother filed an amended Statement of Support Calculations.
- 12) The Court notes that on 5/29/26 the parties concluded trial before the Hon. Monica F. Wiley on Mother's request to move-away to Vancouver, Canada.

B. Findings and Order

- 1) Mother's request for guideline monthly child support retroactive to 6/10/25 is GRANTED.
- 2) Father's request for imputation of income to Mother is DENIED as premature.
- 3) The Court finds good cause to adopt Father's proposed support calculations attached to his 8/17/26 Responsive Declaration as set forth below.
- 4) Accordingly, Court finds Father owes to Mother a total of \$16,363 for retroactive child support for the period of 6/10/25 – 8/31/26. **Father shall pay Mother the \$16,363 balance in full by 10/1/26**, which was calculated as follows:
 - a. For the period of 6/10/25-7/4/25, when Father had a 0% timeshare, child support was \$2,146.00 per month for total support owed of \$1,788.33 by Father to Mother. See XSpouse "PERIOD A," which is attached hereto and incorporated herein.
 - b. For the period of 7/5/25-9/2/25, when Father had a 5.4% timeshare, child support was \$2,113.00 per month for total support owed of \$4,226.00 by Father to Mother. See XSpouse "PERIOD B," which is attached hereto and incorporated herein.

- 1 c. For the period of 9/3/25-11/16/25, when Father had an 18% timeshare, child support was
2 \$1,978.00 per month for total support owed of \$4,945.00 by Father to Mother. See
3 XSpouse "PERIOD C," which is attached hereto and incorporated herein.
- 4 d. For the period of 11/17/25-12/21/25, when Father had a 32% timeshare, child support
5 was \$1,740.00 per month for total support owed of \$2,030 by Father to Mother. See
6 XSpouse "PERIOD D," which is attached hereto and incorporated herein.
- 7 e. For the period of 12/22/25-1/25/26, when Father had a 43% timeshare, child support was
8 \$1,499.00 per month for total support owed of \$1,748.83 by Father to Mother. See
9 XSpouse "PERIOD E," which is attached hereto and incorporated herein.
- 10 f. For the period of 1/26/26-3/1/26, when Father had a 57% timeshare, child support was
11 \$973.00 per month for total support owed of \$1,135.17 by Father to Mother. See
12 XSpouse "PERIOD F," which is attached hereto and incorporated herein.
- 13 g. For the period of 3/2/26-4/26/26, when the parties had a 2-2-3 or 50% parenting
14 timeshare, child support was \$1,296.00 for total support owed of \$2,419.20 by Father to
15 Mother. See XSpouse "PERIOD G," which is attached hereto and incorporated herein.
- 16 h. Effective 4/27/26, when Father's timeshare changed to 100% because Mother relocated
17 to Canada, child support was \$448.00 per month for a total of \$1,897 owed by Mother to
18 Father. See XSpouse "PROPOSED CALCULATION FORWARD 9/1/2026," which is
19 attached hereto and incorporated herein.
- 20 5) Commencing 9/1/26, and until the parties reach an agreement regarding parenting time moving
21 forward, Mother shall pay Father \$448 per month in accordance with XSpouse "PROPOSED
22 CALCULATION FORWARD 9/1/2026," which is attached hereto and incorporated herein.
23 Mother shall pay Father on the 1st of every month.
- 24 6) Father's request for Smith/Ostler bonus support is DENIED.
- 25 7) Father's request for reimbursement of past expenses is DENIED as the majority of the costs
26 Father lists (i.e., Mother's rent and health insurance) do not constitute child support add-on
27 expenses. In so far as the costs do constitute child support add-on expenses (i.e., childcare costs
28 and healthcare expenses), no proof of payment was provided.
- 29

- 1 8) Moving forward, the parties shall share equally the following add-one expenses: childcare costs
2 related to employment or to reasonably necessary education or training for employment skills,
3 reasonable uninsured healthcare costs for the children, and the reasonable costs associated with
4 mutually agreed upon extracurricular activities (neither party shall unreasonably withhold consent
5 for a child to participate in an activity). The procedure to make or pay a reimbursement claim for
6 these child support add-ons shall be as set forth in Judicial Council Form FL-192.
- 7 9) Mother's request for Family Code section 7605 attorney's fees and costs is GRANTED in the
8 amount of \$75,000.
- 9 10) An award of attorney's fees and costs is appropriate because there is a demonstrated disparity
10 between the parties in access to funds to maintain counsel and in the ability to pay for legal
11 representation. The Court makes this finding partly because Father will have 87% of the parties'
12 combined net spendable income whereas Mother will have 13% of the parties' combined net
13 spendable income after support is paid. See XSpouse "PROPOSED CALCULATION FORWARD
14 9/1/2026." Father's percentage of net spendable income was higher than Mother's for the period
15 of 6/10/25 – 8/31/26 as well. The Court also notes the significant disparity in cash assets and
16 easily saleable funds listed on the parties' respective Income and Expense Declarations.
- 17 11) The Court finds Father has or is reasonably likely to have the ability to pay for legal
18 representation for both parties and \$75,000 in attorney's fees and costs is reasonable and
19 necessary. **Father shall pay Mother the \$75,000 balance in full 12/1/26.**
- 20 12) Counsel for Mother shall prepare the Findings and Order After Hearing and include as an
21 attachments form FL-342 and FL-192.
- 22 13) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
23 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
24 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
25 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
26 proposed order after hearing directly to the court. Failure to submit the order after hearing within
27 10 days may allow the other party to prepare a proposed order and submit it to the court in
28 accordance with CA Rules of Court, Rule 5.125(d).
- 29

PROPOSED CALULATION FORWARD 9/1/2026

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		
#of children	1	0	2026			Guideline	Proposed
% time with NCP	0.00 %	0.00 %			Comb. net spendable	11269	11269
Filing status	HH/MLA	SINGLE	GUIDELINE		Percent change	0%	0%
# exemptions	2	1	Nets(adjusted)		Father		
Wages+salary	55	0	Father	9347	Payment cost/benefit	448	448
Self-employed income	9434	1337	Mother	1922	Net spendable income	9795	9795
Other taxable income	1353	854	Total	11269	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	87%	87%
Other nontaxble income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	-448	Total taxes	1495	1495
401(k) employee contrib	0	0	User SS	0	Dep. exemption value	0	0
Adjustments to income	5077	0	Total	-448	# withholding allowances	0w	0w
SS paid prev marriage	0	0	CS range: -294--448		Net wage paycheck	50	50
CS paid prev marriage	0	0	Settings changed		Mother		
Health insurance	0	0			Payment cost/benefit	-448	-448
Other medical expense	0	0			Net spendable income	1474	1474
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	13%	13%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	-448	Total taxes	269	269
Qual bus income ded	0	0	SS	0	Dep. exemption value	0	0
Required union dues	0	0	Total	-448	# withholding allowances	0w	0w
Mandatory retirement	0	0			Net wage paycheck	0	0
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	0	0					

Mother pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information							
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor
All children	100 - 0	0	0	0	Father	448	Mother
	100 - 0	0	0	0	Father	448	Mother

PERIOD A

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		
#of children	0	1	2025			Guideline	Proposed
% time with NCP	0.00 %	0.00 %	GUIDELINE		Comb. net spendable	11139	11139
Filing status	SINGLE	HH/MLA	Nets(adjusted)		Percent change	0%	0%
# exemptions	2	1	Father		Father		
Wages+salary	55	0	9150		Payment cost/benefit	-2146	-2146
Self-employed income	9434	1337	Mother		Net spendable income	7004	7004
Other taxable income	1353	854	Total		Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	63%	63%
Other nontaxble income	0	0	Addons		% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS		Total taxes	1692	1692
401(k) employee contrib	0	0	User SS		Dep. exemption value	0	0
Adjustments to income	5077	0	Total		# withholding allowances	0w	0w
SS paid prev marriage	0	0	-		Net wage paycheck	50	50
CS paid prev marriage	0	0	Settings changed		Mother		
Health insurance	0	0			Payment cost/benefit	2146	2146
Other medical expense	0	0			Net spendable income	4136	4136
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	37%	37%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS		Total taxes	202	202
Qual bus income ded	0	0	SS		Dep. exemption value	0	0
Required union dues	0	0	Total		# withholding allowances	0w	0w
Mandatory retirement	0	0			Net wage paycheck	0	0
Hardship deduction	0 *	0 *	Saving				
Other GDL deductions	0	0	Releases				
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	0 - 100	0	0	0	Father	2146	Father	2146	Father
	0 - 100	0	0	0	Father	2146	Father	2146	Father

PERIOD B

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		
#of children	0	1	2025			Guideline	Proposed
% time with NCP	5.40 %	0.00 %	GUIDELINE		Comb. net spendable	11139	11139
Filing status	SINGLE	HH/MLA	Nets(adjusted)		Percent change	0%	0%
# exemptions	2	1	Father		Father		
Wages+salary	55	0	9150		Payment cost/benefit	-2113	-2113
Self-employed income	9434	1337	Mother		Net spendable income	7037	7037
Other taxable income	1353	854	Total		Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	63%	63%
Other nontaxble income	0	0	Addons		% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS		Total taxes	1692	1692
401(k) employee contrib	0	0	User SS		Dep. exemption value	0	0
Adjustments to income	5077	0	Total		# withholding allowances	0w	0w
SS paid prev marriage	0	0	-		Net wage paycheck	50	50
CS paid prev marriage	0	0	Settings changed		Mother		
Health insurance	0	0			Payment cost/benefit	2113	2113
Other medical expense	0	0			Net spendable income	4103	4103
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	37%	37%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS		Total taxes	202	202
Qual bus income ded	0	0	SS		Dep. exemption value	0	0
Required union dues	0	0	Total		# withholding allowances	0w	0w
Mandatory retirement	0	0	Saving		Net wage paycheck	0	0
Hardship deduction	0 *	0 *	Releases				
Other GDL deductions	0	0					
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	5 - 95	0	0	0	Father	2113	Father	2113	Father
	5 - 95	0	0	0	Father	2113	Father	2113	Father

PERIOD C

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		
#of children	0	1	2025			Guideline	Proposed
% time with NCP	18.00 %	0.00 %	GUIDELINE		Comb. net spendable	11139	11139
Filing status	SINGLE	HH/MLA	Nets(adjusted)		Percent change	0%	0%
# exemptions	2	1	Father		Father		
Wages+salary	55	0	9150		Payment cost/benefit	-1978	-1978
Self-employed income	9434	1337	Mother		Net spendable income	7172	7172
Other taxable income	1353	854	Total		Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	64%	64%
Other nontaxble income	0	0	Addons		% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS		Total taxes	1692	1692
401(k) employee contrib	0	0	User SS		Dep. exemption value	0	0
Adjustments to income	5077	0	Total		# withholding allowances	0w	0w
SS paid prev marriage	0	0	-		Net wage paycheck	50	50
CS paid prev marriage	0	0	Settings changed		Mother		
Health insurance	0	0			Payment cost/benefit	1978	1978
Other medical expense	0	0			Net spendable income	3967	3967
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	36%	36%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS		Total taxes	202	202
Qual bus income ded	0	0	SS		Dep. exemption value	0	0
Required union dues	0	0	Total		# withholding allowances	0w	0w
Mandatory retirement	0	0			Net wage paycheck	0	0
Hardship deduction	0 *	0 *	Saving				
Other GDL deductions	0	0	Releases				
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	18 - 82	0	0	0	Father	1978	Father	1978	Father
	18 - 82	0	0	0	Father	1978	Father	1978	Father

PERIOD D

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		
#of children	0	1	2025			Guideline	Proposed
% time with NCP	31.50 %	0.00 %	GUIDELINE		Comb. net spendable	11139	11139
Filing status	SINGLE	HH/MLA	Nets(adjusted)		Percent change	0%	0%
# exemptions	2	1	Support		Father		
Wages+salary	55	0	Father	9150	Payment cost/benefit	-1740	-1740
Self-employed income	9434	1337	Mother	1989	Net spendable income	7410	7410
Other taxable income	1353	854	Total	11139	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	67%	67%
Other nontaxble income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	1740	Total taxes	1692	1692
401(k) employee contrib	0	0	User SS	0	Dep. exemption value	0	0
Adjustments to income	5077	0	Total	1740	# withholding allowances	0w	0w
SS paid prev marriage	0	0	Settings changed		Net wage paycheck	50	50
CS paid prev marriage	0	0			Mother		
Health insurance	0	0			Payment cost/benefit	1740	1740
Other medical expense	0	0			Net spendable income	3729	3729
Property tax expense	0	0	Proposed		Change from guideline	0	0
Ded interest expense	0	0	Tactic 9		% of combined spendable	33%	33%
Charitable contributions	0	0	CS	1740	% of saving over guideline	0%	0%
Misc tax deductions	0	0	SS	0	Total taxes	202	202
Qual bus income ded	0	0	Total	1740	Dep. exemption value	0	0
Required union dues	0	0	Saving		# withholding allowances	0w	0w
Mandatory retirement	0	0	Releases		Net wage paycheck	0	0
Hardship deduction	0 *	0 *					
Other GDL deductions	0	0					
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information							
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor
All children	31 - 69	0	0	0	Father	1740	Father
	31 - 69	0	0	0	Father	1740	Father

PERIOD E

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		
#of children	0	1	2026			Guideline	Proposed
% time with NCP	43.00 %	0.00 %	GUIDELINE		Comb. net spendable	11272	11272
Filing status	HH/MLA	SINGLE	Nets(adjusted)		Percent change	0%	0%
# exemptions	2	1	Father		Father		
Wages+salary	55	0	9347		Payment cost/benefit	-1499	-1499
Self-employed income	9434	1337	Mother		Net spendable income	7847	7847
Other taxable income	1353	854	Total		Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	70%	70%
Other nontaxble income	0	0	Addons		% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS		Total taxes	1495	1495
401(k) employee contrib	0	0	User SS		Dep. exemption value	0	0
Adjustments to income	5077	0	Total		# withholding allowances	0w	0w
SS paid prev marriage	0	0	-		Net wage paycheck	50	50
CS paid prev marriage	0	0	Settings changed		Mother		
Health insurance	0	0			Payment cost/benefit	1499	1499
Other medical expense	0	0			Net spendable income	3424	3424
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	30%	30%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS		Total taxes	266	266
Qual bus income ded	0	0	SS		Dep. exemption value	0	0
Required union dues	0	0	Total		# withholding allowances	0w	0w
Mandatory retirement	0	0			Net wage paycheck	0	0
Hardship deduction	0 *	0 *	Saving				
Other GDL deductions	0	0	Releases				
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	43 - 57	0	0	0	Father	1499	Father	1499	Father
	42 - 58	0	0	0	Father	1499	Father	1499	Father

PERIOD F

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		
#of children	1	0	2026			Guideline	Proposed
% time with NCP	0.00 %	43.00 %	GUIDELINE		Comb. net spendable	11272	11272
Filing status	HH/MLA	SINGLE	Nets(adjusted)		Percent change	0%	0%
# exemptions	2	1	Father		Father		
Wages+salary	55	0	9347		Payment cost/benefit	-973	-973
Self-employed income	9434	1337	Mother		Net spendable income	8373	8373
Other taxable income	1353	854	Total		Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	74%	74%
Other nontaxble income	0	0	Addons		% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS		Total taxes	1495	1495
401(k) employee contrib	0	0	User SS		Dep. exemption value	0	0
Adjustments to income	5077	0	Total		# withholding allowances	0w	0w
SS paid prev marriage	0	0	-		Net wage paycheck	50	50
CS paid prev marriage	0	0	Settings changed		Mother		
Health insurance	0	0			Payment cost/benefit	973	973
Other medical expense	0	0			Net spendable income	2898	2898
Property tax expense	0	0	Proposed		Change from guideline	0	0
Ded interest expense	0	0	Tactic 9		% of combined spendable	26%	26%
Charitable contributions	0	0	CS		% of saving over guideline	0%	0%
Misc tax deductions	0	0	973		Total taxes	266	266
Qual bus income ded	0	0	SS		Dep. exemption value	0	0
Required union dues	0	0	Total		# withholding allowances	0w	0w
Mandatory retirement	0	0	Saving		Net wage paycheck	0	0
Hardship deduction	0 *	0 *	Releases				
Other GDL deductions	0	0					
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information

	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	57 - 43	0	0	0	Father	973	Father	973	Father
	57 - 43	0	0	0	Father	973	Father	973	Father

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Fixed Shares	Father	Mother	Monthly figures		Cash Flow		
#of children	1	0	2026			Guideline	Proposed
% time with NCP	0.00 %	49.99 %	GUIDELINE		Comb. net spendable	11272	11272
Filing status	HH/MLA	SINGLE	Nets(adjusted)		Percent change	0%	0%
# exemptions	2	1	Support		Father		
Wages+salary	55	0	Father	9347	Payment cost/benefit	-1296	-1296
Self-employed income	9434	1337	Mother	1925	Net spendable income	8050	8050
Other taxable income	1353	854	Total	11272	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	71%	71%
Other nontaxble income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	1296	Total taxes	1495	1495
401(k) employee contrib	0	0	User SS	0	Dep. exemption value	0	0
Adjustments to income	5077	0	Total	1296	# withholding allowances	0w	0w
SS paid prev marriage	0	0	Settings changed		Net wage paycheck	50	50
CS paid prev marriage	0	0			Mother		
Health insurance	0	0			Payment cost/benefit	1296	1296
Other medical expense	0	0			Net spendable income	3221	3221
Property tax expense	0	0	Proposed		Change from guideline	0	0
Ded interest expense	0	0	Tactic 9		% of combined spendable	29%	29%
Charitable contributions	0	0	CS	1296	% of saving over guideline	0%	0%
Misc tax deductions	0	0	SS	0	Total taxes	266	266
Qual bus income ded	0	0	Total	1296	Dep. exemption value	0	0
Required union dues	0	0	Saving		# withholding allowances	0w	0w
Mandatory retirement	0	0	Releases		Net wage paycheck	0	0
Hardship deduction	0 *	0 *					
Other GDL deductions	0	0					
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information

	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	50 - 50	0	0	0	Father	1296	Father	1296	Father
	50 - 50	0	0	0	Father	1296	Father	1296	Father

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YUYIN FABIOLA SANCHEZ,

Petitioner

VS.

JORGE FRANCISCO PACHECO,

Respondent

) Case Number: FMS-13-386504

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME),
MINOR CHILD MAY SEE A PSYCHOLOGIST, TIER 2 MEDIATION.

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties to the proceeding are Petitioner Yuyin Sanchez (Mother) and Respondent Jorge Pacheco (Father). They share one minor child: Nala Alia Pacheco (DOB: 09/24/15).
- 2) On June 10, 2026, Mother filed a Request for Order seeking modification of the visitation orders, minor child to see a psychiatrist, a tier 2 mediation, and orders that minor child be permitted to speak with her during Father's custodial time. She is also seeking orders that they share equal access to the minor child's passport.
- 3) On July 13, 2026, Father filed a Responsive Declaration in which he asks the Court to deny Mother's requests.
- 4) On July 27, 2026, both parties appeared at the "Readiness" hearing and the parties were referred to FCS Mediation to occur on August 18, 2026 and set a return hearing for September 1, 2026.
- 5) On August 25, 2026, Father filed a supplemental declaration, which has been read and considered by the Court.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) Mother's request to modify the existing parenting plan is GRANTED. Commencing September 1, 2026, Father's parenting time with the minor child shall be two days per week, on Father's days off and when he is available to provide care for the minor child. Father shall inform Mother is his two days off, as soon as his work schedule is available. Mother shall have care and custody of the minor child during all other times.
- 3) Mother's request that the minor child have her own cell phone is DENIED. However, the minor child may call Mother at any time during Father's parenting time. Father shall facilitate the placement of the phone calls. The minor child should feel free to call Mother whenever she likes and should not be prevented by Father from making the call.
- 4) Mother's request that the minor child be permitted to see a therapist is GRANTED. Father may select 3 names and submit them to Mother within 14 days. Mother shall then have 7 days to select the therapist from the 3 names submitted to her by Father.
- 5) Mother's request that the Court interview the minor child via a Tier II Mediation is DENIED.
- 6) Father's request to modify the existing Holiday schedule is DENIED.
- 7) Mother's request that the parties share the minor child's passport is GRANTED. The parents shall alternate holding the child's passport. Mother shall have possession of the minor child's passport from 09/01/26-08/31/27. Father shall the have the passport from 09/01/28-08/31/29. They shall alternate every year thereafter.
- 8) Neither parent make take the child outside of the United States, without the permission of the other parent. If the other parent denies consent, then the minor child shall not leave the United States.
- 9) Both parents shall participate in any decisions related to the minor child's education. Neither parent is permitted to act unilaterally. If a parent acts unilaterally, without informing the other

parent and without their consent. That conduct shall be deemed as not being in the child's best interest and could result in a change of custody.

10) All existing orders, not in conflict with the orders made herein, shall remain in full force and effect.

11) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANITA YUAN YUN HUANG,

Petitioner

VS.

WEN HUA YANG,

Respondent

) Case Number: FDI-16-786194

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE SELL MARITAL HOME AND 271 SANCTIONS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Anita Yuan Yun Huang and Respondent Wen Hua Yang.
- 2) On 2/15/24, the Court issued a Final Statement of Decision, which includes disposition of the jointly owned condominium located at 110 Otter Cove Terrace in San Francisco CA. The Court ordered, in pertinent part: "The condominium is assigned to Petitioner, with an equalizing payment owed by Petitioner to Respondent in the amount of \$366,000. Petitioner shall have until August 31, 2024 to arrange the financing necessary to purchase Respondent's community property share of the condominium. If she is unable to do so by that date, the condominium shall be sold, and the net proceeds split evenly between the parties after the payment of commissions, fees, taxes, and other closing costs. In the event the condominium is to be sold, Petitioner shall provide Respondent with the names of three proposed local real estate agents to act as the listing agent no later than September 21, 2024." See Final Statement of Decision and Order filed 2/15/24.

- 1 3) On 3/3/26, the Court denied Respondent's Request for Order filed 11/26/25 seeking: (a) an order
2 providing Respondent exclusive authority to sell the Condominium, including choosing a real
3 estate agent and accepting/rejecting offers; (b) an order for a court appointed elisor to sign the
4 listing agreements and/or other documents on Petitioner's behalf; and (c) \$1,500 in sanctions. The
5 Court denied the requests on the basis that judgment was not entered on the 2/15/24 Final
6 Statement of Decision, so therefore was not enforceable.
- 7 4) On 4/10/26, the Court entered Judgment incorporating the Final Statement of Decision filed
8 2/15/24.
- 9 5) On 7/6/26, Respondent filed a Request for Order seeking: (a) exclusive authority to sell the
10 condominium including choosing a real estate agent and accepting/rejecting offers; (b) a court
11 appointed elisor to sign the listing agreement and/or other documents on Petitioner's behalf; (c)
12 Petitioner ordered to vacate the property forthwith; (d) Petitioner ordered to pay legal interest rate
13 of 10% for each day that the equalization payment of \$366,000 is late; and (e) Petitioner ordered
14 to pay \$10,000 in Family Code section 271 sanctions.
- 15 6) On 7/6/26, counsel for Respondent filed a declaration in support of the request for \$10,000 in
16 Family Code section 271 sanctions.
- 17 7) On 8/18/26, former counsel for Petitioner filed a declaration in response to Respondent's
18 requests, asserting that Petitioner did not obstruct or delay the buyout process.
- 19 8) On 8/19/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for
20 Order.
- 21 9) On 8/19/26, Petitioner filed an amended Responsive Declaration in opposition to Respondent's
22 Request for Order. Petitioner asserts that Respondent is precluded from seeking such relief as the
23 Court previously denied Respondent's request for the same relief on 3/3/26. Petitioner also asserts
24 that she sent Respondent a buyout agreement on 3/4/26 that he ignored.
- 25 10) The Court notes Petitioner filed two ex parte Requests for Order (one filed 3/16/26 and one filed
26 7/7/26) effectively seeking to modify the Court's Final Statement of Decision filed 2/15/24,
27 which the Court denied.

28 **B. Findings and Order**
29

- 1) The Court finds that Petitioner has not arranged the financing necessary to purchase Respondent's community property share of the condominium by paying to Respondent an equalizing payment of \$366,000; therefore, the condominium must be sold.
- 2) Accordingly, Respondent's request for exclusive authority to sell the condominium located at 110 Otter Cove Terrace in San Francisco CA is GRANTED.
- 3) Petitioner shall vacate the condominium by 11/1/26, at which time Respondent shall have exclusive use, possession, and control of the condominium.
- 4) Respondent may unilaterally select a real estate agent and is given sole decision-making authority over whether to accept or reject offers.
- 5) Respondent's request for the Court to appoint an elisor to sign/execute the listing agreement is hereby GRANTED. Specifically, Court Executive Officer Brandon Riley is appointed as elisor. Should Respondent need to obtain the signature of Mr. Riley, Respondent shall contact the Administrative Office in Room 205 at 415-551-5737 to schedule an appointment with Mr. Riley to sign the listing agreement. Respondent shall bring to the appointment the necessary documents requiring signature and a file-endorsed copy of this order.
- 6) In so far as Respondent requires appointment of an elisor to sign additional documents to effectuate the sale of the condominium, he may file an ex parte Request for Order seeking such relief.
- 7) The net proceeds from the sale of the condominium shall be split evenly between the parties after the payment of commissions, fees, taxes, and other closing costs.
- 8) The Court reserves jurisdiction over Respondent's request for \$10,000 in Family Code section 271 sanctions.
- 9) Counsel for Respondent shall prepare the Findings and Order After Hearing.
- 10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

VINNEE TONG,

Petitioner

VS.

WISAM DAKKA,

Respondent

) Case Number: FDI-21-794342

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER CHANGE OF SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT

TENTATIVE RULING

The Court finds good cause to continue Petitioner Vinnee Tong's Request for Order filed 10/11/24 (seeking modification of child support and spousal support) to 10/15/26 to be heard on the same date as Petitioner's Request for Order filed 8/10/26 (seeking permission to serve all future pleadings by electronic service). Accordingly, the 9/1/26 hearing is **continued to 10/15/26 at 9 AM in Dept. 403** at Petitioner's request (see declaration of counsel filed 8/20/26) and in the interest of judicial economy. No appearances are required on 9/1/26.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RANDALL SCOTT SHOUP,

Petitioner

VS.

KATHERINE BUXTON REILLY,

Respondent

) Case Number: FDI-22-797054

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ISSUE CLARIFY RETRAINING AND SEEK WORK ORDERS

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Randall Scott Shoup and Respondent Katherine Buxton Reilly. They share one child: Sebastian Reilly Shoup (DOB: 10/03/06).
- 2) On October 4, 2022, Petitioner filed a Petition for Dissolution indicting the date of marriage is October 4, 1998 and date of separation is July 13, 2014 for a marriage of 15 years and 9 months.
- 3) On December 28, 2022, Respondent filed a Response and Request for Dissolution indicting the date of marriage is October 4, 1998 and date of separation is November 4, 2022 for a marriage of 24 years and 1 month.
- 4) On June 25, 2024, the parties filed a Stipulation and Order agreeing date of separation is June 30, 2017.
- 5) On November 27, 2024, the parties filed a Stipulation and Order regarding temporary monthly child support, temporary monthly spousal support, attorney's fees, and a vocational evaluation.

1 6) On March 21, 2025, the parties filed a Stipulation and Order partly agreeing to adopt the findings
2 of Vocational Evaluator, Rachel Hawk, whose report is attached as Exhibit A.

3 7) On January 26, 2026, Petitioner filed a Request for Order seeking “Issue/Clarify Retraining &
4 Seek Work Orders.” Petitioner requests the Court issue the following orders:

5 a. That Respondent, Katherine Buxton Reilly shall forthwith comply with the
6 recommendations of the vocational evaluation, including:

7 i. Katherine shall complete a minimum of 15 hours per week of vocational or legal
8 education (e.g., MCLE courses, computer training, or coursework in
9 environmental law).

10 ii. Katherine shall engage in networking activities to expand her professional
11 contacts and awareness of job opportunities in environmental law. These
12 activities shall include: (A) attending at least one professional or legal
13 association meeting, webinar, or networking event per month (such as those
14 offered by the Bar Association of San Francisco or the California Lawyers
15 Association); and (B) communicating monthly (in person, by phone, by email,
16 by LinkedIn, etc.) with at least five professional contacts in the environmental
17 law, real property, and/or land use law (such as attorneys, recruiters, or legal
18 organizations).

19 a. Katherine shall submit a minimum of five job applications per month for paid or unpaid
20 legal positions. This can include legal volunteer opportunities.

21 b. Katherine shall provide a seek work report every 30 days.

22 c. A review hearing shall be set for approximately 90 days after the order on this hearing to
23 assess Katherine’s compliance with these requirements.

24 8) At the prior April 21, 2026 hearing, the Court ordered Respondent to continue to follow the
25 recommendations provided in Rachel Hawk’s vocational evaluation, as follows:

26 a. Respondent, Katherine Buxton Reilly shall forthwith comply with the recommendations
27 of the vocational evaluation, including:

28 i. Katherine shall maintain her mandatory continuing legal education requirements
29 as required by the State Bar of California.

1 ii. Katherine shall engage in networking activities to expand her professional
2 contacts and awareness of job opportunities in environmental law. These
3 activities shall include: (A) attending at least one professional or legal
4 association meeting, webinar, or networking event per month (such as those
5 offered by the Bar Association of San Francisco or the California Lawyers
6 Association); and (B) communicating monthly (in person, by phone, by email,
7 by LinkedIn, etc.) with at least five professional contacts in the environmental
8 law, real property, and/or land use law (such as attorneys, recruiters, or legal
9 organizations).

10 b. Katherine shall submit a minimum of five job applications per month for paid or unpaid
11 legal positions. This can include legal volunteer opportunities.

12 c. Katherine shall provide a seek work report every 30 days.

13 d. A review hearing is set on September 1, 2026, at 9:00 a.m., in Dept. 403 to assess
14 Katherine's compliance with these requirements. At that time, if Respondent has not
15 located full time employment, the Court may consider any request by Petitioner for
16 imputation of earning capacity to Respondent.

17 e. The parties shall file update declaration at least 10 days in advance of the review hearing.

18 9) On May 26, 2026, Respondent filed an Income and Expense Declaration.

19 10) On July 29, 2026, Petitioner filed an Income and Expense Declaration.

20 11) On August 21, 2026, Respondent filed a supplemental declaration asserting that she has made
21 diligent seek work efforts but has not yet secured employment. Respondent requests the Court
22 maintain the current temporary support orders.

23 12) On August 21, 2026, Petitioner filed an update declaration requesting the Court impute
24 Respondent with an income of \$125,000 per year, which is consistent with the entry-level
25 compensation range identified in the vocational evaluation.

26 13) On August 21, 2026, counsel for Petitioner filed a declaration asking the Court to amend the
27 April 21, 2026 Findings and Order After Hearing (filed August 7, 2026) to reflect the Court's
28 order regarding the number of job applications Respondent is ordered to complete (the order
29

1 currently states 10 when Respondent was ordered complete 5 job applications per week).

2 Attached is a proposed amended order.

3 **B. Findings and Order**

- 4 1) The Court will review and sign counsel for Petitioner's proposed, amended April 21, 2026
5 Findings and Order After Hearing to reflect the Court's order that Respondent shall submit 5 job
6 applications per week.
- 7 2) The Court is inclined to grant Petitioner's request for imputation of earning capacity to
8 Respondent given that the vocational evaluation states it could take Respondent 12-18 months to
9 fully prepare to return to the field of land use law (i.e., 3-6 months to obtain a full-time paid
10 position after 12 months of continued education and training). The vocational evaluation is dated
11 February 7, 2025; therefore, 18 months has lapsed.
- 12 3) **The parties are ordered to appear** and shall be prepared to present argument regarding the
13 amount Respondent should imputed and updated Statement of Support Calculations to the Court.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ZHENIA MEDINA GUTIERREZ,

Petitioner

VS.

MARTIN JOEL QUIROZ IBANEZ,

Respondent

) Case Number: FDI-25-801424

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME), VEHICLE AS
COMMUNITY PROPERTY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Zhenia Medina Gutierrez (Mother) and Respondent Martin Joel Quiroz Ibanez (Father). They share one minor child: Bruno J. Quiroz Medina (DOB: 12/07/16).
- 2) On April 20, 2026, Father filed a Request for Order seeking initial child custody and visitation orders. Father requests joint legal custody and for Mother to have physical custody. As to visitation, Father requests parenting time every weekend from Friday at 7:00 p.m. through Sunday at 7:00 p.m. Father also asks the Court deny Mother's request that the 2016 Toyota Corolla be considered community property.
- 3) On June 22, 2026, Readiness hearing was conducted, and the matter was referred to FCS Mediation to occur on July 22, 2026, and the matter was set for return hearing on August 11, 2026.

1 4) On August 11, 2026, the matter was continued as Mother did not provide Father and the Court
2 with notice of her objections to the Court's tentative ruling. The Court did not adopt its tentative
3 ruling and continued the matter to September 1, 2026.

4 **B. Findings and Order**

- 5 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
6 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
7 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
8 child(ren) is the United States.
- 9 2) The Court DENIES without prejudice Respondent's request to declare the 2016 Toyota Corolla a
10 separate property asset. This is an issue for trial. The Court will adjudicate this issue, at the time
11 of the final trial in this matter.
- 12 3) The parties shall share joint legal and joint physical custody of the minor child.
- 13 4) Father's parenting time shall be on the 1st, 3rd and 5th weekends of each month from Friday after
14 school (if no school, 4:00 p.m.) through Monday morning drop of the child at school. Father to
15 provide the transportation to and from his parenting time.
- 16 5) Father shall also have parenting time with the minor child every Wednesday from after school
17 until 7:30 p.m. Father shall provide the transportation to and from his parenting time.
- 18 6) Mother shall have care and custody of the minor child during all other times.
- 19 7) The parties shall meet and confer to develop a Holiday schedule for their parenting time. If they
20 are unable to do so, either of them may file a Request for Order seeking the Court's assistance in
21 developing a Holiday schedule.
- 22 8) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALURA MICHELLE GAMBINO,

Petitioner

VS.

MARK PETER GAMBINO,

Respondent

) Case Number: FDI-25-801672

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Alura Michelle Gambino and Respondent Mark Peter Gambino.
- 2) On 7/14/25, Petitioner filed a Petition for Dissolution indicating the date of marriage is 9/1/01 and date of separation is 3/1/23 for a marriage of 22 years. On 7/28/25, Petitioner filed a Proof of Service of Summons indicating Respondent was personally served on 7/17/25.
- 3) On 7/2/26, Petitioner filed an amended Petition for Dissolution indicating the date of marriage is 9/1/01 and date of separation is 3/1/23 for a marriage of 22 years. On 7/2/26, Petitioner filed a Proof of Service by Mail indicating service was effectuated by mail on 7/2/26.
- 4) On 7/16/26, Petitioner filed an ex parte Request for Order seeking spousal support and child support.
- 5) On 7/16/26, the Court denied Petitioner's request for emergency relief pending hearing set for 9/1/26. The Court ordered Petitioner to personally serve Respondent with all documents filed with Request for Order (see FL-300).

- 6) There is no Proof of Service on file indicating Respondent was personally served with the 7/16/25 Request for Order.
- 7) Respondent did not file a Responsive Declaration.
- 8) Petitioner did not file an Income and Expense Declaration with the Request for Order seeking spousal support and child support.

B. Findings and Order

- 1) The hearing on Petitioner's 7/16/25 Request for Order is hereby **CONTINUED to 10/13/26 at 9 AM in Dept. 403** to (a) permit Petitioner file and serve an Income and Expense Declaration as required by California Rules of Court, rule 5.260; and (b) provide Petitioner additional time to effectuate proper service.
- 2) At least 16 Court days prior to the next hearing date, Petitioner shall serve on Respondent the (a) Request for Order, (b) current, completed Income and Expense Declaration (form FL-150); (c) Continuance Order contained herein, and (d) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure.
- 3) At least 9 Court days prior to the next hearing date, Respondent may file and serve a Responsive Declaration and shall file and serve an Income and Expense Declaration (form FL-150).
- 4) At least 5 Court days prior to the next hearing date, Petitioner may file and serve a Reply Declaration.
- 5) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JULIET CUBIAS,

Petitioner

VS.

MARC CHAMBERLAIN JR,

Respondent

) Case Number: FDI-26-802478

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER OF CHANGE OF CHILD
CUSTODY AND/OR VISITATION CHANGE OF CHILD CUSTODY, VISITATION (PARENTING
TIME), CHILD INTERVIEWS FOR BOTH CHILDREN

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Juliet Cubias (Mother) and Respondent Marc Chamberlain, Jr., (Father).
There are two minor children subject to this proceeding: Madeline (DOB: 03/06/10) and Marc
(DOB: 08/22/12).
- 2) On March 5, 2026, Father filed a Request for Order seeking a modification of child custody and
visitation (i.e., parenting time) orders. Father seeks joint legal and physical custody. In addition,
Father requests the children attend school in Maine starting the 2026-2027 school year. Father
requests he be the “school parent” and Mother be the “summer and school break parent.” Father
indicates their daughter expressed an interest in attending school in Maine and requests a Tier II
interview of the minor children.
- 3) On May 19, 2026, Mother filed a Responsive Declaration in which she asks this Court to deny
Father’s requests.

1 4) On May 28, 2026, Father filed a “Declaration of Truancy,” which has been read and considered
2 by the Court.

3 5) On June 24, 2026, the parties participated in Family Court Services (FCS) Mediation and did not
4 reach any agreements.

5 6) On July 7, 2026, the parties appeared, and the Court granted Father’s request for a Tier II
6 interview of the minor children (school preference and possible move to Maine with Father) and
7 continued the matter to September 1, 2026. The Court has received information from the Family
8 Court Services Mediation team related to the issues posed in Father’s motion.

9 **B. Findings and Order**

10 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
11 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
12 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
13 child is the United States.

14 2) All relief sought in Father’s Request for Order filed on March 5, 2026 is DENIED.

15 3) The children shall continue attending school in California.

16 4) All existing orders remain in full force and effect as there is no sufficient basis to modify the
17 existing child custody and visitation orders.

18 5) The Court will prepare the Findings and Order After Hearing.
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